

		two parties. For this reason, the Court finds that Plaintiff has not sufficiently established a likelihood that Plaintiff will prevail on his breach of contract cause of action at trial. Importantly, the Court notes that this is not a determination of the merits of Plaintiff's breach of contract cause of action against Defendant and the Court makes no conclusions as to whether there was in fact an agreement between Plaintiff and Defendant. The Court only determines that Plaintiff has provide sufficient evidence of this agreement in this motion and therefore has not met his burden in moving to maintain the status quo. Given the above, the Motion is DENIED. Court clerk to give notice.
109	JB Bostick, LLC vs. Braathen 25-01495911	Motion for Sanctions Plaintiff and Cross-Defendant JB-BOSTICK, LLC ("Plaintiff") moves this Court for an order imposing sanctions against Defendant and Cross-Complainant ARILD BRAATHEN ("Defendant") arising from Defendant's post-litigation destruction of critical physical evidence. [Please see Notice of Motion. (ROA 51).] Initially, the Discovery Act does not expressly prohibit the intentional destruction of relevant evidence ("spoliation") before a lawsuit has been filed or before a discovery request. [See Dodge, Warren & Peters Ins. Services, Inc. v. Riley (2003) 105 CA4th 1414, 1419.] Notably, Courts have disagreed whether spoliation is sanctionable under the Discovery Act: "Destroying evidence in response to a discovery request after litigation has commenced would surely

	be a misuse of discovery within the meaning of section 2023, as would such destruction in anticipation of a discovery request.” [Cedars-Sinai Med. Ctr. v. Sup.Ct. (Bowyer) (1998) 18 C4th 1, 12, 74 (dictum) (emphasis added); see Williams v. Russ (2008) 167 CA4th 1215, 1227—terminating sanction imposed for allowing destruction of relevant records. Yet, other courts rejected sanctions for spoliation on the ground that the Discovery Act authorizes sanctions only “[t]o the extent authorized by the chapter governing any particular discovery method or any other provision of this title,” and no discovery method applies to spoliation before a discovery request. [CCP § 2023.030 (emphasis added); New Albertsons, Inc. v. Sup.Ct. (Shanahan) (2008) 168 CA4th 1403, 1430-1431.] Recently, at least with respect to electronically-stored information (ESI), a party has a prelitigation duty to preserve material evidence if litigation is “reasonably foreseeable.” [Victor Valley Union High School Dist. v. Sup.Ct. (John M.M. Doe) (2023) 91 CA5th 1121, 1138, 1142-1144, (citing former text)] In this instance, on 7/9/2025 Plaintiff Bostick filed a complaint against Defendant Braathen for failure to pay for money due under a construction contract. On 9/24/2025 Braathen filed a Cross-Complaint against Bostick indicating Bostick’s work was defective. Plaintiff/Cross-Defendant Bostick now brings this motion for sanctions arguing that Braathen spoiled the evidence herein by remediating the allegedly defective work done by Bostick. Importantly, there is no dispute that the remediation work performed at Braathen’s property addressed
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	the same physical conditions alleged in the Cross-Complaint. Bostick argues once the asphalt paving, underlying subgrade, grading, concrete improvements, and related work were removed and replaced, Plaintiff permanently lost the ability to inspect or test the original conditions giving rise to Defendant's allegations. However, this appears at least partially incorrect because Braathen's attorney, Paul Rolf Jensen declares: 4. On June 3, 2025, I personally attended a meeting and inspection at the Property. Present were Mr. Braathen; Plaintiffs counsel, Monica Slev; a senior representative of JB Bostick who identified himself as the new general manager. 9. During the inspection, Ms. Slev and/or Bostick's representative took photographs of the conditions at the Property. I placed no limitation on what they could photograph or the number of photographs they could take, and I invited them to photograph whatever they wished. I do not know how many photographs they ultimately took. As such, it appears that before Bostick filed its lawsuit, it had the opportunity to inspect its own work at the Braathen work site. Significantly, as of the June 3, 2025 inspection, Braathen had been complaining of the work done at the site since January 2025 (Decl. of Braathen ¶4) and was demanding that Bostick correct its work. By 9/24/2025 Braathen filed its Cross-Complaint. In September/October 2025 the remediation work was completed. [Note: It is unclear how much the inability to "test" the work-site will prejudice Bostick.]
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	Clearly, Braathen was under a duty to preserve the evidence at the work site by the time it filed its own Cross-Complaint and failed to do so. However, two things appear to mitigate the severity of Braathen’s conduct. First, as Braathen argues, Bostick’s lawyer inspected the site without limitations, and was provided follow up information in June 2025. Indeed, by June 18, 2025, Attorney Slev sent an email indicating that her client had “evaluated this matter” and had formed an opinion as to what caused the defect in the work. (Decl. of Jensen¶17, Ex. C.) Second, it does not appear that Ms. Slev (Bostick’s lawyer) ever sent a letter to preserve the work-site or sent a demand to inspect the work-site again once litigation commenced. (See Decl. of Jensen¶¶18, 19.) Then again, perhaps they did not have time to do so because Braathen quickly remediated the work-site after filing its Cross-Complaint. Nevertheless, both sides took photos of the job site. (Decl. of Braathen¶¶33, 52). There were witnesses who knew about the alleged defects and inspected them. As such, both sides have some evidence to establish/disprove the defect. More importantly, it doesn’t appear that Braathen was trying to destroy evidence. Rather, it appears he was simply trying to get his property fixed. Pointedly, he declares, “I ultimately proceeded with remediation because Bostick had not satisfactorily corrected the problems and the Property needed to be repaired, not because I intended to deprive Bostick of evidence.” (De
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		As such, the Motion is denied [without prejudice to allowing the proper jury instruction being provided at trial. For example, CACI 204 if warranted.]
110	Alvarado vs. General Motors LLC 25-01458835	Motion for Attorney Fees Plaintiff Kenny Alvarado (“Plaintiff”) moves for an order awarding attorney fees pursuant to Civil Code section 1794(d), in the amount of \$14,510.50 against defendant General Motors LLC (“Defendant”). The motion is unopposed. Civil Code section 1794(d) states: “If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” “As the plain wording of section 1794, subdivision (d) makes clear, the trial court is ‘to base the fee award upon actual time expended on the case, as long as such fees are reasonably incurred—both from the standpoint of time spent and the amount charged.’ ” (Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 247.) “Under the lodestar adjustment methodology, the trial court must initially determine the actual time expended and then ‘ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable.’ ” (Ibid.) This action was filed in February 2025. The parties engaged in streamlined AB 1755 initial disclosures and attended mediation. There was no motion practice and no depositions were taken. Counsel billed a total of 23.9 hours over the span of the litigation (totaling \$11,510.50 in fees), and requests